

Amendment No. 1 to HB2337

Terry
Signature of Sponsor

AMEND Senate Bill No. 2194*

House Bill No. 2337

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 48-68-206, is amended by designating the existing section as subsection (a) and adding the following new subsection (b):

(1) Subdivision (a)(5) does not apply to a hospital, and such hospital is not a public benefit hospital entity for purposes of subdivision (a)(5), if the hospital:

(A) Was established solely for the benefit of a county government; and

(B) Has an estimated sales value of more than five hundred million dollars (\$500,000,000).

(2) This subsection (b) becomes effective in a county government that contains a hospital as described in subdivision (b)(1) upon approval by a two-thirds (2/3) vote of the legislative body of the county government.

SECTION 2. Tennessee Code Annotated, Section 48-68-206(a)(5), is amended by deleting the subdivision and substituting:

(5) Except as provided in subsection (b), whether the proceeds will be controlled as funds independently of the acquiring or related entities; provided, however, proceeds must not be returned to any county or municipal government except to the extent necessary to pay lawful obligations to such county or municipal government;

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.